

Monaco 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Monaco during the year.

There were no credible reports of serious human rights abuses.

The government took credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution and law provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent press and an effective judiciary contributed to freedom of expression.

Although not enforced, the law prohibited offending the Prince and provided for punishment from six months to five years in prison per offense. If not committed publicly, the act could be punished with imprisonment from six months to three years. The law also prohibited offending the family of the Prince and provided for punishment from six months to three years in prison. If not committed publicly, the act was punishable by imprisonment from three months to one year. Authorities did not charge anyone with violating these statutes during the year.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right of workers, including foreign workers, to form and join independent unions, bargain collectively, and conduct legal strikes; government workers did not have the right to strike. Antiunion

discrimination was prohibited. The law required the majority of members of a trade union's bureau to be citizens of the principality or France. Union representatives could be fired only with the agreement of a commission that included two members from the employers' association and two from the labor movement. The government and employers generally respected freedom of association and the right to bargain collectively, and employer organizations and trade unions negotiated agreements on working conditions that were largely respected.

The government generally enforced the law. Penalties were commensurate with those for other laws involving denials of civil rights. Penalties were regularly applied against violators. The government provided the assistance of mediators for private or professional conflicts to avoid long and costly court procedures and to find a solution acceptable to all parties to the dispute.

Forced or Compulsory Labor

There were no confirmed reports during the year traffickers exploited domestic or foreign victims in the country or traffickers exploited nationals as victims abroad.

Acceptable Work Conditions

Wage and Hour Laws

The law provided for a minimum wage, which exceeded the official estimate of the poverty level. The law provided for a standard workweek of 39 hours and restricted overtime to a total of 48 hours per week unless a special exemption was granted. Infractions of wage, hour, and overtime laws were most common in the construction and restaurant industries.

Occupational Safety and Health

The laws and government decree establishing occupational safety and health (OSH) standards were appropriate for the main industries of the country. The inspectors who covered wage and hour laws were also responsible for enforcing occupational safety and health laws. The labor inspectors proactively investigated the sectors prone to unsafe conditions of work.

The law did not provide for the right of workers to remove themselves from situations that endangered health or safety. There were no official statistics regarding specific sectors prone to violations of OSH standards.

Wage, Hour, and OSH Enforcement

Workplace health and safety committees and government labor inspectors effectively enforced the minimum wage, overtime, and OSH laws. Penalties

were commensurate with those for similar violations, and inspection was sufficient to enforce compliance. Penalties were regularly applied against violators.

The Department of Employment in the Ministry of Health and Social Affairs was responsible for enforcing wage and hour laws. The inspectorate had an adequate number of labor inspectors. The chief inspector answered directly to the director of the Department of Employment. Labor inspectors informed employers and employees on all matters related to labor laws and arbitrated, mediated, and reconciled disputes between labor and management. They carried out regular on-site inspections, including unannounced visits, to enforce employers' compliance with all legal requirements.

Data were not available on enforcement of occupational safety and health standards in the small informal economy.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements.

An arrest warrant was required. A detainee was required to appear before an investigating magistrate within 24 hours of arrest to be informed of the charges and the detainee's rights under the law, and authorities generally respected this requirement. There was a functioning bail system.

Authorities released most detainees without bail, but the investigating magistrate could order detention on grounds that the suspect might flee or interfere with the investigation of the case. Detainees generally had prompt access to a lawyer, and the government provided one to indigent defendants. There were no reported cases of arbitrary or unlawful detention.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

There were no confirmed reports during the year traffickers exploited

domestic or foreign victims in the country or that traffickers exploited nationals as victims from abroad.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibited such practices, and there were no reports government officials employed them.

b. Protection of Children

Child Labor

The law prohibited the worst forms of child labor. The minimum age for employment was 16. Employment opportunities for individuals between ages 16 and 18 were severely restricted; individuals younger than 18 were allowed to work eight hours per day to a maximum of 39 hours per week and were barred from night work. The government enforced the law effectively. Penalties were commensurate with those for similar crimes. There were no confirmed reports during the year of the worst forms of child labor.

Child Marriage

The legal minimum age of marriage in the country was 18, and this was effectively enforced by the government. Children younger than 18 needed parental authorization to marry.

c. Protection to Refugees

Provision of First Asylum

The law did not provide for the granting of asylum or refugee status, and the government had not established a system for providing protection to refugees. Monaco was not normally a refugee-receiving country, and France handled immigration matters. Nonetheless, due to the war in Ukraine, Monaco resettled approximately 1,000 displaced Ukrainians by July 2023.

d. Acts of Antisemitism and Antisemitic Incitement

According to the European Jewish Congress, the Jewish community numbered approximately 1,000 persons, most of whom were foreign residents of the country. According to the Monaco chapter of the nongovernmental organization Association Culturelle Israelite, there were no reports of antisemitic acts.